Southern and Eastern Scalefish and Shark Fishery and Small Pelagic Fishery (Variation of Closures) Direction 2018

I, James Findlay, Chief Executive Officer of the Australian Fisheries Management Authority ('AFMA'), as delegate of the AFMA Commission, make the following Direction.

Dated 24 July 2018

Dr James Findlay
Chief Executive Officer
Australian Fisheries Management Authority

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1 Name

This instrument is the *Southern and Eastern Scalefish and Shark Fishery and Small Pelagic Fishery (Variation of Closures) Direction 2018*.

2 Commencement

This instrument commences on the day after it is registered on the Federal Register of Legislation.

3 Authority

This instrument is made under subsection 41A(3) of the *Fisheries Management Act 1991*.

4 Schedules

Each instrument that is specified in a Schedule to this instrument is amended or repealed as set out in the applicable items in the Schedule concerned, and any other item in a Schedule to this instrument has effect according to its terms.

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Schedule 1—Amendments

Southern and Eastern Scalefish and Shark Fishery and Small Pelagic Fishery (Closures) Direction 2016

1 After paragraph 6(t)

Insert**:**

(u) Fishing is not to be engaged in by trawl methods in the part of the Southern and Eastern Scalefish and Shark Fishery described in Schedule 38 in a season if an aggregated amount of 25 tonnes of Orange Roughy (western) (*Hoplostethus atlanticus*) has been taken in the part of the Southern and Eastern Scalefish and Shark Fishery described in Schedule 38 for the fishing season beginning on 1 May and ending on 30 April of the following year.

(v) Fishing is not to be engaged in in the part of the Southern and Eastern Scalefish and Shark Fishery known as the Flinders Research Zone Closure as described in Schedule 39.

2 Paragraph 7(a)

Repeal the paragraph, substitute:

(a) Clauses 6(d), 6(i), 6(j), 6(k), 6(m), 6(o), 6(p), 6(q), 6(u) and 6(v) do not apply to holders fishing under a concession granted in accordance with the *Small Pelagic Fishery Management Plan 2009* using the mid-water trawl or mid-water pair trawl method(s).

3 Paragraph 7(b)

Repeal the paragraph, substitute:

(b) Clause 6 does not apply to fishing by the purse seine, jigging or minor line methods.

4 After Schedule 37

Insert:

SCHEDULE 38

Western deepwater shark closure

The part of the AFZ contained within and bounded by a line:

(a) commencing at the intersection of the parallel of latitude 39º 58’ 22.7” South and the meridian of longitude 143º 10’ 43.30” East (point 1);

(b) then generally along the geodesics sequentially connecting the following points:

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2	40° 01’ 38.00” South	143° 00’ 54.40” East
3	40° 54’ 00.00” South	143° 30’ 00.00” East
4	40° 54’ 00.00” South	143° 42’ 04.00” East
5	40° 47’ 26.00” South	143° 35’ 55.00” East
6	40° 43’ 00.00” South	143° 31’ 23.00” East
7	40° 35’ 42.00” South	143° 26’ 40.00” East
8	40° 26’ 33.00” South	143° 21’ 15.00” East
9	40° 04’ 05.00” South	143° 13’ 01.00” East
10	39° 58’ 24.00” South	143° 10’ 44.00” East

(c) then generally north along the geodesic to the point of commencement.

SCHEDULE 39

Flinders Research Zone Closure

The area of the Flinders Research Zone Closure is that part of the AFZ contained within and bounded by a line:

(a) commencing at the point of latitude 39° 26' South, longitude 148° 43.74' East (point 1);

(b) then generally southerly along the geodesics sequentially connecting the following points:

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2	39° 26.32' South	148° 43.65' East
3	39° 27.43' South	148° 45.01' East
4	39° 31.67' South	148° 46.61' East
5	39° 36.72' South	148° 47.39' East
6	39° 37.68' South	148° 43.71' East
7	39° 39.23' South	148° 42.79' East
8	39° 40.94' South	148° 47.24' East
9	39° 45.06' South	148° 48.16' East
10	39° 48.8' South	148° 46.67' East
11	39° 50.09' South	148° 48.39' East
12	39° 51.86' South	148° 49.04' East
13	39° 54.63' South	148° 48.23' East
14	39° 56.31' South	148° 50.34' East
15	40° 1.82' South	148° 51.87' East
16	40° 4.43' South	148° 51.48' East
17	40° 7.76' South	148° 51.81' East
18	40° 8.44' South	148° 52.59' East
19	40° 10.92' South	148° 52.59' East
20	40° 11.59' South	148° 53' East
21	40° 14.05' South	148° 51.1' East
22	40° 14.65' South	148° 53.52' East
23	40° 15.41' South	148° 52.97' East
24	40° 16.43' South	148° 53.19' East
25	40° 19.37' South	148° 52.78' East
26	40° 21.28' South	148° 53.07' East
27	40° 23.07' South	148° 52.55' East

(c) then generally easterly along the geodesic to the point of latitude 40° 21.98' South, longitude 148° 56.35' East (point 28) and then generally northerly along the geodesics sequentially connecting the following points:

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29	40° 19.16' South	148° 55.18' East
30	40° 16.58' South	148° 56.52' East
31	40° 6.87' South	148° 57.02' East
32	40° 3.87' South	148° 58.69' East
33	39° 54.7' South	148° 56.72' East
34	39° 47.67' South	148° 54.11' East
35	39° 45.63' South	148° 54.29' East
36	39° 43.16' South	148° 53.75' East
37	39° 42.32' South	148° 53.14' East
38	39° 37.68' South	148° 52.36' East
39	39° 36.68' South	148° 53.06' East
40	39° 29.18' South	148° 51.97' East
41	39° 28.75' South	148° 50.81' East
42	39° 27.73' South	148° 51.46' East
43	39° 25.98' South	148° 50.94' East

(d) then generally westerly along the geodesic to the point of commencement.

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Schedule 2—Repeals

Southern and Eastern Scalefish and Shark Fishery (Closures) Direction No. 6 2013

1 The whole of the instrument

Repeal the instrument.

Southern and Eastern Scalefish and Shark Fishery (Closures) Direction No. 11 2013

1 The whole of the instrument

Repeal the instrument.

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